

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

MICHAEL SULLIVAN
License No. 001217
Respondent

CASE NO. 18-0048

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science ("Board") and Michael Sullivan ("Respondent"), 974 73rd St, Ste 9, West Des Moines IA 50265, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with engaging in unethical conduct or practice harmful or detrimental to the public, and may be disciplined pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(4) and 33.2(29).

COUNT II

2. Respondent is charged with violating section A.1.a. entitled "Primary Responsibility" and section A.5.e. entitled "Personal Virtual Relationships with Current Clients" of the ACA Code of Ethics (2014), and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)"b".

B. FACTUAL CIRCUMSTANCES

3. Respondent holds mental health counselor license number 001217, which is currently active through September 30, 2020.

4. Respondent practices at Sullivan Counseling in West Des Moines.

5. Respondent provided therapy to a minor client from approximately October 2015 through January 2018.

6. A complaint was filed with the Board in February 2018 alleging Respondent had an inappropriate photo of the client on his phone, had inappropriate physical contact with the client, and made inappropriate comments to the client during sessions.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

7. The Board has jurisdiction over the parties and the subject matter of these proceedings.

8. Respondent acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order. Respondent denies the allegations in their entirety but enters into this Order to forego the uncertainty of a contested case hearing.

9. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

10. Respondent acknowledges that he has the right to be represented by counsel on this matter.

11. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

12. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

13. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

14. This Order shall not be binding as to any new complaints received by the Board.

15. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

16. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

17. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

18. Respondent is prohibited from providing counseling services to any individual under the age of eighteen (18). Respondent shall have sixty (60) days from the date of this Order to transfer the care of any current clients under the age of eighteen (18) to another provider.

19. Respondent's license is hereby placed on **PROBATION** for a period of two (2) years, subject to the following conditions:

- a. Within thirty (30) days, Respondent shall submit the name and credentials of a proposed practice monitor and proposed practice monitoring plan for approval. The practice monitor must be an Iowa licensed mental health

counselor with no disciplinary history and training in supervision who can objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Order. Respondent shall meet in a face-to-face setting with the practice monitor at least once per month during the probationary period to review Respondent's compliance with this Order, Respondent's clinical practice, and any issues related to boundaries. Respondent is responsible for ensuring the quarterly reports are timely submitted by his practice monitor.

- b. Within six (6) months, Respondent shall complete eight (8) hours of continuing education related to professional boundaries. Respondent shall submit certificates of completion to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.
- c. Respondent shall appear before the Board upon request for the purpose of reviewing his performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- d. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- e. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- f. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- g. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

20. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

12/10/19
Date


MICHAEL SULLIVAN
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on December 12, 2019.

Donald Gilbert by TONY ALDEN, BOARD EXEC
Chairperson
Iowa Board of Behavioral Science